EXPLAINER

The sacraments and the law

Most Catholics meet canon law only at the font, the altar rail or the funeral. Here is what it says at each of those moments, and the one principle underneath all of it.

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The law leans toward access

Start with the rule that governs everything else on this page. The faithful have a right to receive from their pastors the spiritual goods of the Church, especially the word of God and the sacraments. Ministers may not refuse the sacraments to those who ask for them at an appropriate time, are properly disposed and are not prohibited by law from receiving them. The burden, in other words, sits with the refusal, not with the request. A refusal must point to a specific disposition or a specific prohibition in the law. "We don't do that here" is not one. cc. 213, 843 §1

At the same time, the law distinguishes between a sacrament being *valid* (it truly took place) and *licit* (it was celebrated as the Church directs). Much of what follows is about liceity. A baptism performed by a layperson with water and the Church's words is valid; a wedding celebrated without the required form is not. Knowing which kind of problem you have is half the answer.

Baptism of infants

Parents are to see that their children are baptized within the first weeks of life, and a child in danger of death is to be baptized at once. For the baptism to be licit, at least one parent (or whoever lawfully takes their place) must consent, and there must be a founded hope that the child will be raised in the Catholic faith. If that hope is altogether lacking, the baptism is to be deferred, under the diocese's own norms, and the parents told why. cc. 867, 868

Two things are worth stressing. First, the standard is *hope*, not certainty, and it is "altogether lacking" that justifies deferral, not merely weak. Rome's 2023 responses on baptism confirmed this reading for children of parents in irregular unions: where there is a founded hope, the child is to be baptized. Second, a deferral is not a refusal. If a parish defers your child's baptism, ask for the reason in writing and ask what would supply the hope: a commitment to catechesis, a practising godparent, your own return to the sacraments. If the answer is unreasonable, you may take the matter to the bishop. One further note: in 2020 Rome ruled that baptisms attempted with the words "We baptize you" are invalid and must be repeated. If you were baptized that way, speak to your pastor. cc. 868 §1 n. 2, 849

Godparents

A sponsor must be a confirmed Catholic who has received the Eucharist, is at least sixteen (unless the bishop sets another age or the pastor makes an exception), leads a life in harmony with the faith and the role, is not under a canonical penalty, and is not the child's parent. One sponsor is enough; there may be two, a man and a woman. A baptized Christian who is not Catholic may stand alongside a Catholic sponsor as a *witness* to the baptism, not as a sponsor. The ecumenical directory makes a modest exception for members of the Eastern Orthodox Churches, who may act as sponsor together with a Catholic. cc. 873, 874

Confirmation and first communion

Confirmation is to be conferred at about the age of discretion unless the bishops' conference sets another age. In Canada the age is left to each bishop and varies by diocese; in the United States the conference has set a range from the age of discretion to about sixteen. Children may receive communion once they have sufficient knowledge and preparation to understand the mystery of Christ according to their capacity, and sacramental confession is to precede first communion. A child in danger of death may receive if able to distinguish the Body of Christ from ordinary food. cc. 891, 913, 914

Communion after divorce and remarriage

Here I want to be exact, because this is where people are most often hurt by an inexact word. Two canons are involved, and they do different things.

- **c. 916** speaks to the person: one conscious of grave sin is not to receive without first confessing. This is a matter of conscience. No minister can see into it, and no one else can judge it for you.
- **c. 915** speaks to the minister: those under a declared or imposed excommunication or interdict, and others who "obstinately persevere in manifest grave sin," are not to be admitted. Every word there is about an outward state: *manifest* (publicly known), *obstinate* (persisting after a pastoral warning), and conduct that is objectively grave. It is not a judgment that the person has sinned mortally; that judgment belongs to God alone. CCC 1861

The teaching that the divorced and civilly remarried cannot be admitted to communion while living as husband and wife was set out by St John Paul II and has not been revoked. Pope Francis, in chapter 8 of *Amoris laetitia*, asked pastors to accompany and discern case by case, and in a footnote said that in certain cases this may include the help of the sacraments; the bishops of the Buenos Aires region read this as opening the sacraments in some circumstances, and the Pope approved their reading and had it published in the official acts. Bishops and canonists do not all read these texts the same way, and the Church has not closed the question. What I can tell you is this: the decision is made in the internal forum, with a confessor; a minister who refuses communion publicly must be able to point to a manifest, obstinate and objectively grave state, not to a guess about your soul; and if you are refused in a way you believe is wrong, you

may ask the pastor, and then the bishop, for the reasons. Familiaris consortio 84; Amoris laetitia 300-305 and n. 351; cc. 915, 916

In practice: c. 915 is a restriction on a right, and restrictive laws are read strictly (c. 18). A minister who is uncertain is to admit, not to refuse.

Confession

The seal is absolute. A confessor may never betray a penitent, in any way, for any reason, and anyone else who learns of sins from a confession is bound as well. You are free to confess to any approved confessor of your choice, including one of another rite. General absolution without individual confession is lawful only in danger of death or in a grave necessity that the bishop has judged to exist; a large crowd at a feast is not such a necessity. cc. 983, 991, 961

Anointing of the sick

The anointing is for any baptized person who has reached the use of reason and who *begins* to be in danger from sickness or old age. It is not reserved for the moment of death, and it may be repeated if the person recovers and falls ill again or the illness worsens. If you or a relative is seriously ill or simply old and frail, you may ask for it, and it should not be refused. c. 1004

Marriage

A Catholic marries validly only before the local ordinary, the pastor or a priest or deacon delegated by them, and two witnesses. This is the "canonical form." The bishop can dispense from it for grave difficulties when a Catholic marries a non-Catholic, so that, for example, the wedding may take place in the other party's church with their minister. A marriage between a Catholic and a baptized non-Catholic needs the bishop's permission; a marriage between a Catholic and an unbaptized person needs a dispensation, without which it is invalid. cc. 1108, 1127 §2, 1124, 1086

If you married civilly, or outside the form, and now want the Church to recognise the marriage, there are two paths. A *convalidation* renews the consent before a priest or deacon, once any impediment has ceased or been dispensed. A *radical sanation* heals the marriage from its beginning without a new exchange of consent, provided both still wish to remain married. Neither requires a declaration of nullity of anything, unless one of you was previously married; for that, see marriage nullity and indissolubility. cc. 1156-1165

Funerals

The faithful are to be given a Church funeral. Catechumens count as faithful; the bishop can permit a funeral for a child whose parents intended baptism but who died before it; and baptized non-Catholics may

be given a Catholic funeral at the bishop's judgment when their own minister is unavailable. Cremation is permitted unless chosen for reasons contrary to Christian teaching. The denial of a funeral is narrow: notorious apostates, heretics and schismatics, those cremated for anti-Christian reasons, and other manifest sinners for whom a funeral could not be granted without public scandal, and in every case only if they gave no sign of repentance before death. In any doubt the bishop is to be consulted and his judgment followed. A family refused a funeral may ask that the question go to him. cc. 1176, 1183, 1184

Eastern Catholics

If you belong to one of the Eastern Catholic Churches (Ukrainian, Maronite, Chaldean, Syro-Malabar and others), you are governed by the Eastern Code, not the Latin one. The same principle of access applies, but some rules differ: infants are chrismated at baptism, marriage requires a priest's blessing for validity, and the canons carry different numbers. Many of my clients are Eastern Catholics married to Latins or attending Latin parishes; the right Code has to be identified at the start. CCEO

KEY CANONS

- **c. 213** The right to the word of God and the sacraments.
- **c. 843 §1** No refusal to the properly disposed who ask.
- **cc. 867-868** Infant baptism; the founded hope.
- **c. 874** Who may be a sponsor.
- **cc. 891, 913-914** Ages for confirmation and first communion.
- **cc. 915-916** Admission to communion; conscience.
- **cc. 961, 983, 991** General absolution; the seal; your choice of confessor.
- **c. 1004** Anointing when danger begins.
- **cc. 1108, 1124, 1127, 1156-1165** Form, mixed marriage, convalidation.
- **cc. 1176-1185** Funerals.

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